

TENTATIVE RULING:

Demurrer

The verified complaint failed to state facts sufficient to support a cause of action for misrepresentation as the allegations failed to show formation of a valid contract between seller and first prospective purchaser. The verified complaint alleged that when the first prospective purchaser purported to accept Plaintiffs' May 10, 2014 counter offer, he "submitted at the same time an Addendum adding new terms to the contract." (Complaint at ¶14.) The First Amended Complaint alleges the first prospective purchaser "submitted...an Addendum attempting to add new terms to the contract. (FAC at ¶14.) This is based on the new allegation that the first prospective purchaser did not check the box labeled "SUBJECT TO THE ATTACHED COUNTER OFFER" above his signature on the May 10, 2014 counteroffer. (FAC at ¶16.) Allegations in a verified complaint are binding and cannot be contradicted in subsequent pleadings. Moore v. Hill (2010) 188 Cal.App.4th 1267, 1283 n. 14.

In opposition to the demurrer, Plaintiffs omitted to address the argument that facts alleged in the verified First Amended Complaint that are contradictory to facts alleged in the verified Complaint may not be used to create a cause of action.

Plaintiffs are invited to brief and argue this issue.

~~Motion to Strike~~

Ruling is reserved on Defendant's motion to strike.